IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No301

CP(CAA)/43(AHM)2022
in
CA(CAA)/18(AHM)2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

Positronics Control Systems Pvt Ltd **.....Applicant**
Positronics Pvt Ltd

.....Respondent

Order delivered on 25/01/2023

Coram:

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Niraj Trivedi, PCS
For the RD : Mr. Shiv Pal Singh, Assistant Director.

ORDER

Learned PCS for the Applicant states that the affidavit filed in compliance of the order dated 20.01.2023 erroneously does not contain the documents with respect to query no. 2 which were raised on 20.01.2023. On perusal of the other documents, for query No. 3 there is no proof of payment of outstanding balance amount against loan from ICICI is annexed. For query no. 1 Regarding creation of charge, same documents which are filed in the application are again annexed in the affidavit. No explanation is given with respect to creation of charge. Only some ROC documents are filed with the markings, without clarification.

Order is de-reserved.

List for further consideration on 21.02.2023

-sd- -sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Abhishek